Before the
FEDERAL COMMUNICATIONS COMMISSION
Washington, D.C. 20554

In the Matter of	)	
	)	
Facilitating Implementation of Next Generation 911 Services (NG911)	)	PS Docket No. 21-479
	)	
	)	
Next Generation 911 (NG911) Valid Requests – Massachusetts State 911 Department Phase 2 Request	)	PS Docket No. 25-143

NCTA – THE INTERNET & TELEVISION ASSOCIATION
PETITION FOR WAIVER

Pursuant to Section 1.3 of the Federal Communications Commission's (FCC or Commission) rules,[1] NCTA – The Internet and Television Association (NCTA) hereby seeks a further extension of the October 30, 2026 Phase 2 Next Generation 911 (Phase 2) compliance date in the Commonwealth of Massachusetts.[2] More specifically, on behalf of its members that act as Originating Service Providers (OSPs) of wireline voice service in Massachusetts, NCTA requests a waiver of Section 9.30(a)(2) of the Commission's rules through April 30, 2027.[3]

As explained below, NCTA's members have made significant progress toward implementing Phase 2 NG911 service in Massachusetts, but additional time is needed to ensure that the complex, first-time deployment of a Phase 2 solution is successful. Importantly, while NCTA's members continue working toward Phase 2 implementation, consumers in

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[1] 47 C.F.R. § 1.3; *see also Facilitating Implementation of Next Generation 911 Services (NG911); Location-Based Routing for Wireless 911 Calls*, Report and Order, 39 FCC Rcd 8137, ¶¶ 127, 129 (2024) (NG911 Order).

[2] As demonstrated in PS Docket No. 25-145, Massachusetts agreed to extend its initial Phase 2 compliance date.

[3] 47 C.F.R. § 9.28 (defining "originating service providers").

Massachusetts will continue to have access to the robust 911 services and capabilities that are currently in place.

I. NCTA'S MEMBERS HAVE BEEN WORKING DILIGENTLY TO IMPLEMENT NG911 NATIONWIDE

The Commission has long recognized the "substantial public interest benefits for consumers, businesses, and the broader economy" associated with Internet Protocol (IP) networks,[4] and the FCC's NG911 framework is an important step in transitioning the nation's networks from Time-Division Multiplexing to IP. NCTA's members support the Commission's efforts to advance the IP transition and have long spearheaded the deployment of IP-based voice networks throughout the country, recognizing that these innovative services move numerous FCC priorities forward, including NG911.

In many jurisdictions, NCTA's members have been delivering 911 traffic in IP since well before the FCC's NG911 obligations became effective.[5] With respect to 911 networks that more recently transitioned to IP, NCTA's members have complied with numerous Phase 1 requests nationwide and have diligently pursued the work necessary to deploy Phase 2. To ensure a consistent and reliable NG911 transition throughout their networks, NCTA's members have engaged third-party partners that specialize in 911/NG911 call delivery and location services, including partners that operate a Location Information Server (LIS), such as Intrado Life &

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[4] *Advancing IP Interconnection; Accelerating Network Modernization; Call Authentication Trust Anchor*, Notice of Proposed Rulemaking, WC Docket Nos. 25-304, 25-208, and 17-97, 40 FCC Rcd 8566, ¶ 11 (2025).

[5] *See, e.g.*, Comments of NCTA – The Internet & Television Association, PS Docket No. 21-479, at 2 (Aug. 9, 2023); Comments of NCTA – The Internet & Television Association, WC Docket Nos. 25-304, 25-208, and 17-97, at 3-4 (Jan. 20, 2026).

Safety (Intrado) and Allerium/Comtech Telecommunications Corp.[6] NCTA's members then conducted initial planning, engaged in the groundwork associated with network design, and completed other preliminary measures with these partners in a timely manner, in some cases before the FCC's NG911 rules even took effect in March 2025. Intrado, for instance, has described the extensive "foundational Phase 2 infrastructure work [it undertook] years before" the Massachusetts State 911 Department (Department) submitted its Phase 2 request.[7]

NCTA's members and their partners have continued to build upon these efforts, putting into place many of the core components of their Phase 2 solutions. Among other measures:

- Major updates to the systems OSPs use to submit their customers' addresses for validation have been developed, including establishing a lab environment to be used for interoperability testing.

- The databases used to store addresses and determine the 911 Authority to which an emergency call should be routed have been fundamentally rebuilt to support Civic Location Data Exchange Format (CLDXF), the new record format for Location Validation Function (LVF) addresses.

- Voice network elements, including Session Border Controllers (SBCs) and network monitoring tools, have been updated to support NENA i3 emergency calling, including the insertion, preservation, and transfer of i3-required Session Initiation Protocol (SIP) headers and Presence Information Data Format-Location Object (PIDF-LO) location information, as well as location-aware emergency call routing.

- Numerous enhancements have been incorporated to enable interfaces that can:

    - Connect with a 911 Authority's external LVF;

    - Query an LVF on servers managed by a 911 Authority; and

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[6] In the NG911 Order, the FCC expressly permitted OSPs to "acquire services" to fulfill the LIS obligation, dismissing concerns about the technical feasibility of transmitting wireline calls with location information because "there are several commercially available solutions that offer LIS services to wireline providers." NG911 Order ¶¶ 78, 82.

[7] Reply Comments of Intrado Life & Safety, PS Docket Nos. 21-479 and 25-143, at 7 (May 11, 2026) (Intrado Reply Comments).

- Allow customer addresses to be validated against the location address data stored in an external LVF.

It should be noted that the undertakings described above are not merely software updates or minor adjustments to existing operations. The engineering work that has been performed has taken thousands of hours, and an extensive amount of additional time has been spent on operational support, coordination, and oversight matters. In addition, all of the systems, databases, elements, and interfaces described above have been, or are being, tested in a lab environment, and NCTA's members are in the process of validating each change in a real-world production environment. All of these foundational measures have required significant time and resources, but they represent critical work that ultimately will enable NCTA's members to more expeditiously support Phase 2 across their footprints nationwide. Nevertheless, as described below, additional work remains before Phase 2 can be implemented successfully.

II. THE IMPLEMENTATION OF PHASE 2 IS AN INHERENTLY COMPLEX UNDERTAKING

This Is the First Phase 2 Implementation. Despite substantial progress to date, NCTA's members and their vendors have experienced Phase 2 implementation hurdles, which is understandable given that Phase 2 requires new network elements, coordinated integration across a provider's systems, third-party interoperability, and customized solutioning. In part, the formidable challenges associated with deploying Phase 2 in Massachusetts stem from the fact that this is the first Phase 2 implementation in the country. Whereas many providers had years of experience delivering 911 calls in IP before the Phase 1 requirements took effect, the same is not true with respect to the Phase 2 obligations. As a result, many steps of the implementation process have taken more time than originally anticipated. For example, developing interfaces capable of interoperability with an array of potential LVF configurations has proven to be

demanding and very time-consuming. Even once an interface is interoperable with a specific LVF, the process of identifying and correcting record and formatting mismatches may also be a considerable undertaking, especially given the volume of addresses in question. While complications and novel issues are to be expected in the context of technological changes, the precise problems providers will encounter cannot be predicted in advance, and OSPs and their partners continue to troubleshoot and resolve them as they arise.

Specific 911 Authority Parameters Add Complexity. The 911 Authority and its NG911 Core Services (NGCS) operator must establish specific implementation parameters, which compounds the already complicated nature of the Phase 2 deployment process. Although the Department made a decision to use the NENA i3 standard, it has also recognized that aspects of the standard leave room for interpretation.[8] In turn, the Department and its NGCS operator have provided certain technical specifications and other requirements for this Phase 2 implementation.[9] Aligning with these requirements has increased the work that OSPs and their vendors must complete to accomplish Phase 2 in Massachusetts. For example, Intrado completed i3 signaling for "location by value" in its call routing engine between 2023 and 2024

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[8] Reply Comments of Massachusetts State 911 Department, WC Docket No. 23-47, at 27 (Sept. 8, 2023) (Department NG911 Comments); s*ee also, e.g.*, Comments of Bandwidth, PS Docket Nos. 21-479 and 13-75 (Aug. 4, 2025) (Bandwidth NG911 Comments); Intrado, *State of the 9-1-1 Industry: 2025 Trends and Technologies Shaping the Future* (Jun. 17, 2025), *available at*: https://www.intrado.com/resources/state-of-the-9-1-1-industry-report-2025.

[9] *See, e.g.*, Comments of Intrado Life & Safety, PS Docket No. 21-479, at 5 (Aug. 9, 2023) ("Although NG911 vendors base their [Emergency Services Internet Protocol Network (ESInet)] platforms on i3 standards, the implementation requirements vary considerably between vendors and states, including for data formatting and provisioning (*e.g.*, some ESInet providers assume carriers will provide additional data repository (ADR), others do not), security (*e.g.*, different digital certificate requirements and implementations), data delivery (*e.g.*, some ESInets require data delivery over circuits while others prefer or require Internet only), and location query protocol (*e.g.*, some ESInets prohibit [public safety answering points (PSAPs)] from querying the [Automatic Location Information (ALI)] database while others allow ALI queries).").

to meet the NENA i3 standard.[10] Now, however, to meet the Department's specification, Intrado has reported that it "is developing code" to also add "location by reference" to every VoIP record on its platform to enable Phase 2 implementation in Massachusetts.[11] More broadly, as others have noted, because "the NENA i3 standard has flexibility and options, the combination and choice of ESInet vendor, NG[CS] vendor and PSAP [customer premises equipment (CPE)] vendor, each with their own preferences for compliance to various i3 options, creates interdependencies and limitations that flow 'upstream' to the [OSP], requiring the OSP to customize each delivery method and deal with the resulting inconsistency and complexity."[12]

Testing Requires Extensive Time and Resources. In addition, the relevant stakeholders must conduct time-consuming and resource-intensive testing of the specific NG911 configuration in question. Indeed, the testing process is a vital step in implementing Phase 2, and the Commission has stressed the importance of "testing . . . to ensure that the connection from the OSP to the 911 Authority is implemented correctly and meets the requirements of the 911 Authority."[13] Both the Commission and the Department have recognized that, to be successful, such testing must be a collaborative undertaking.[14] As the Department aptly noted, "extensive testing is required between platforms," and "the OSP, [NGCS], and PSAPs all must

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10 Intrado Reply Comments at 7-8.

11 Letter from Sean Ward, Lauren Kravetz, and Ian McCray, Intrado, to Marlene H. Dortch, Secretary, FCC, PS Docket Nos. 21-479 and 25-143, at 6 (July 9, 2026).

12 Bandwidth NG911 Comments at 9.

13 NG911 Order ¶ 85.

14 *Id.* at ¶¶ 75, 85 ("adopt[ing] a condition prerequisite that 911 Authorities secure commitments from their NG911 vendors at Phase 2 in order to ensure that such vendors are available to complete connectivity testing by the compliance deadline applicable to the OSP"); Department NG911 Comments at 27.

align."[15] The interdependencies inherent in the NG911 structure complicate and extend the time required to schedule, coordinate, plan, and complete an iterative, sequential testing process. An OSP must establish connections with multiple lab environments, and each logical connection in the Phase 2 model must be tested to ensure that Phase 2 calls can be successfully transmitted in the necessary format and with the required information. As these individual components and connections are vetted, the relevant parties must develop a solution for any problems that arise, implement those solutions, and then engage in further testing. Only after such steps are complete can meaningful end-to-end testing be conducted.

Notwithstanding the challenges described above, NCTA's members have developed and are effectuating implementation plans in Massachusetts that represent a risk-managed approach to deploying Phase 2. As part of these plans, NCTA's members are actively testing segments of their respective solutions as they become available, including functionality and interoperability laboratory testing and production testing, both with relevant OSP vendors and directly in coordination with the Department. While NCTA's members fully appreciate the need to proceed as quickly as possible, Phase 2 cannot be completed until, among other things, testing with all of the relevant parties is finished, customer address records have been validated against the Department's LVF, and live 911 traffic can begin moving to the new call flow. Additional time is required to ensure that these steps can be carried out in a manner that safeguards consumers and advances the public interest. If new call signaling, location delivery, or routing functions are placed into service before they have been fully tested and validated, 911 calls potentially could fail to connect, be routed to the wrong PSAP, or arrive without accurate location information, any of which could delay emergency response.

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[15] Department NG911 Comments at 27.

III. THE CURRENT CIRCUMSTANCES IN MASSACHUSETTS SATISFY THE FCC'S WAIVER STANDARD

In the NG911 Order, the FCC "encourage[d] 911 Authorities to collaborate with OSPs that are connecting to ESInets and NG911 vendors in the first instance."[16] NCTA's members have been mindful of this recommendation and have, either directly or via the partners they are overseeing, worked with the Department and its NGCS operator throughout the NG911 transition. NCTA's members have attempted to come to a mutual agreement with the Department about an alternative Phase 2 timeline that extends the October 30, 2026 deadline for the reasons described above. Ultimately, however, these efforts were unsuccessful.

Accordingly, NCTA's members now seek to avail themselves of the waiver process specifically anticipated by the FCC in the NG911 Order for "providers facing extraordinary circumstances."[17] The Commission's rules may be "waived for good cause shown."[18] Specifically, the Commission may grant a waiver "where particular facts would make strict compliance inconsistent with the public interest" or "special circumstances warrant a deviation from the general rule and such deviation will serve the public interest."[19] In addition, a waiver may be appropriate to account for "actual experience" in circumstances where the Commission has "pursue[d] plans and policies bottomed on informed prediction."[20]

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16 NG911 Order ¶ 127.

17 *Id.*

18 47 C.F.R. § 1.3.

19 *Northeast Cellular Tel. Co. v. FCC*, 897 F.2d 1164, 1166 (D.C. Cir. 1990) (citing *WAIT Radio v. FCC*, 418 F.2d 1153, 1159 (D.C. Cir. 1969)); *NetworkIP, LLC v. FCC*, 548 F.3d 116, 127 (D.C. Cir. 2008).

20 *Telocator Network of Am. v. FCC*, 691 F.2d 525, 550 n.191 (D.C. Cir. 1982).

As described herein, implementation of Phase 2 service in Massachusetts, the first such undertaking in the nation, has involved a myriad of technical considerations, and "actual experience" has demonstrated that addressing these issues requires more time and resources than the FCC's "informed prediction" suggested. As a result, NCTA's members in Massachusetts are facing the very "unique or unforeseen challenges" associated with a "first-time" transition that the Commission recognized in the NG911 Order,[21] which plainly represent "special circumstances" sufficient to warrant the requested waiver. The Public Safety and Homeland Security Bureau recently applied this principle in Massachusetts, finding that an issue uncovered in one of a provider's earliest NG911 deployments was "the sort of 'first-time' transition challenge that warrants flexibility under the Commission's NG911 rules."[22] Additionally, Commission precedent supports granting a waiver sought by an industry association in circumstances where complex technical issues necessitate additional time for the association's members to implement a new requirement.[23] Here, as described above, NCTA's members have worked diligently to implement Phase 2 for the first time in the nation and to do so in a manner

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21 NG911 Order ¶¶ 87, 127.

22 *Facilitating Implementation of Next Generation 911 Services (NG911)*, Order, DA 26-1042, ¶ 19 (rel. Sept. 28, 2026).

23 *See, e.g.*, *Accessible Emergency Information, and Apparatus Requirements for Emergency Information and Video Description: Implementation of the Twenty-First Century Communications and Video Accessibility Act of 2010,* Memorandum Opinion and Order, 30 FCC Rcd 5012, ¶ 16 (2015) (granting waiver requests filed by the American Cable Association and the National Association of Broadcasters (NAB) related to the Audible Crawl Rule and citing NAB's assertion that "not only are there technical difficulties associated with implementation of viable audible crawl solutions, but broadcasters must also rely on numerous vendors – and timelines beyond their control – to bring these solutions to market"); *Petition for Waiver of Rules Requiring Support of TTY Technology*, Order, 31 FCC Rcd 3778, ¶ 1 (2016) (granting "the Competitive Carriers Association (CCA) members a temporary, limited waiver of the Commission's requirements to support text telephony (TTY) technology on wireless networks to the extent that they use Internet Protocol (IP) technologies").

that aligns with the Department's specific parameters, but need additional time to successfully complete this process.

Moreover, granting the waiver would promote the public interest. OSPs need sufficient time to carefully test and deploy Phase 2's new functionalities and integrations, because the benefits of Phase 2 can only be fully realized if it is implemented correctly. NCTA's members are working diligently to complete this transition, but rushing testing and deployment would be particularly ill-advised for 911 calling given the catastrophic consequences that could result. This is particularly true for the first Phase 2 implementation, and thorough testing will only benefit future Phase 2 deployments. Notably, emergency call handling will remain the same if the waiver is granted. Consumers will continue to be able to access emergency services, and validated location information will be transferred to the PSAP with each call.[24]

Finally, as this is the first state in which Phase 2 is being deployed, OSPs will be leveraging many of the processes and procedures generated here in their subsequent deployments, which underscores the significance of allowing adequate time for this undertaking to be completed correctly. Thorough testing will only benefit future Phase 2 deployments. To be clear, NCTA strongly supports the shared objective of expeditiously transitioning to NG911 and recognizes the benefits associated with Phase 2 deployment. Nevertheless, it is more important for the Phase 2 transition to be handled properly than it is to press forward and potentially risk loss of life in deference to a regulatory deadline.

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[24] For fixed wireline services, Phase 2 uses the same civic addresses relied on for emergency calling today, but changes how they are formatted and validated. While the waiver is in place, these civic addresses will continue to be validated against the E911 Master Street Address Guide (MSAG).

IV. REQUESTED RELIEF

For the reasons explained above, on behalf of its members that act as OSPs of wireline voice service in Massachusetts, NCTA requests an extension of the Phase 2 implementation date through April 30, 2027. This extension period is consistent with prior FCC precedent,[25] and would afford NCTA's members adequate time to properly implement, test, and deploy the fundamental and complex network and operational changes necessary to complete Phase 2 of the NG911 transition in Massachusetts.

At the same time, given that implementation logistics across NCTA's membership may vary based on a number of factors, certain OSPs could be capable of successfully deploying Phase 2 in full or for certain customer segments before the requested waiver date. NCTA's members commit to deploying Phase 2 as soon as feasible, as well as to timely notifying the Commission and the Department once Phase 2 has been deployed.

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[25] *See, e.g.*, *Facilitating the Deployment of Text-to-911 and Other Next Generation 911 Applications; Framework for Next Generation 911 Deployment*, Order, 30 FCC Rcd 13409 (2015) (granting a one-year extension of the deadline for "covered text providers to be capable of sending texts to 911"); *Review of the Emergency Alert System*, Order, 25 FCC Rcd 16376 (2010) (granting a six-month waiver of an Emergency Alert System reception requirement).

V. CONCLUSION

For the reasons set forth herein, NCTA respectfully requests that the Commission grant its members a waiver of the Phase 2 NG911 implementation deadline in Massachusetts through April 30, 2027.

Respectfully submitted,

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